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No Child Left Behind, the Individuals with Disabilities Education Act and Functional Curricula: A Conflict of Interest?

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Abstract: Is a functional curriculum aligned with the federal education policies of No Child Left Behind (2002) and the Individuals with Disabilities Education Act (IDEA, 2004)? This article analyzes the alignment, or lack thereof, between this approach to educating secondary students with mild mental impairment and the two main federal education laws governing their education. It explores the relationship across four areas: general education curriculum and setting, accountability, highly qualified teachers, and scientifically-based research. The analysis suggests that there may be a conflict of interest between the functional curriculum model and federal legislation.

Students with disabilities, particularly developmental disabilities, and those that educate them face uncertain times. Federal education legislation has shifted the focus of education in general, and thus special education. Within the federal policies affecting the education of students with disabilities – *No Child Left Behind* (NCLB, 2002) and *Individuals with Disabilities Education Act* (IDEA, 1997, 2004) – the agenda for K-12 education has moved from access to outcomes with a focus on academics. With these shifts in focus, one has to wonder if there is a place for a functional curriculum to educate secondary students with mild mental impairment.

NCLB (2002), the reauthorization of the federal Elementary and Secondary Education Act, was founded on four pillars: stronger accountability, more freedom for states and communities (i.e., greater local control), use of proven educational methods (i.e., scientifically-based research), and more choices for parents. Its purpose is to make sure that every student has access to and achieves a quality education based on high standards (Yell & Drasgow, 2005). State standardized tests are

used to validate student and school achievement and progress, with a goal of 100% proficiency rate in reading and mathematics by the 2013–2014 school year.

The federal special education law, IDEA (2004), first passed in 1975, guarantees a free and appropriate public education in the least restrictive environment for students with disabilities, with a focus on individualization and protection under due process (Turnbull, Huerta, & Stowe, 2006). The most recent reauthorization of IDEA emphasized access for students with disabilities to the general education curriculum and participation in general large scale assessments, in alignment to NCLB. Hence, NCLB and IDEA both focus on what to teach (curriculum) and where to teach it (instructional environment) and suggest what is valued and desired in the education of students with disabilities.

Given the predominance of both policies towards increased academic achievement, especially in literacy and mathematics, and a push for schools to use evidence-based educational interventions, one has to wonder where a functional curriculum fits in as an option for educating secondary students with mild mental impairment. Do these laws provide a space for a functional curriculum, which focuses on the skills necessary to live, work, and have fun in society, to educate this population of students, students who have a below-average IQ

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and have limitations in adaptive functioning (Polloway, Smith, Chamberlain, Denning, & Smith, 1999)? Or does a functional curriculum and NCLB (2001) and IDEA (2004) face a conflict of interests?

This paper examines NCLB (2002) and IDEA (2004) and how they connect (or fail to connect) with a functional curriculum approach to educating secondary students with mild mental impairment. The first section of the paper discusses what a functional curriculum is and gives a historical perspective on this curricular approach. The next section discusses the alignment, or lack thereof, between functional curricula and the two policies. Here four main areas are highlighted: access to the general education curriculum and setting, accountability and assessment, highly qualified teachers, and scientifically-based practices. The paper concludes with suggestions for future research and implications for practice regarding functional curricula.

Functional Curriculum

A functional curriculum reflects one option with which to educate students with disabilities and was developed after reflecting upon already existing curriculum, the common events one needs to confront and handle in a community, and the belief that what was occurring in schools failed to address the knowledge and skills necessary for post-school success for students with mild mental impairment (Bigge, 1988; Retish, Hitchings, Horvath, & Schmalte, 1991; Sabornie & deBettencourt, 1997; Schmalte & Retish, 1989). Snell (1997) suggested that functional curricula were developed to help students with disabilities acquire the adaptive skills needed in life that they did not possess and would not develop unless explicitly taught.

Components of a functional curriculum, supported in the literature, include the functional application of skills from the core subject areas (academics), vocational education, community access, daily living, finances, independent living, transportation, social/relationships, and self-determination (Patton, Cronin, & Jarrrells, 1997). These represent the core areas of knowledge needed by students with disabilities to live, work, and have fun in

an inclusive community (Brown et al., 1979; Falvey, 1989; Snell & Browder, 1987).

A functional curriculum aligns with the belief that students with disabilities, who do not plan on and/or are not capable of attending post-secondary school, do not need to focus on higher academics (e.g., mathematics – trigonometry, advanced algebra), but do need to understand functional academics (e.g., mathematics – money, time) (Patton, Cronin, & Bassett, 1997). And they need specific instruction in the elements of a functional curriculum, as research suggests that these students do not acquire these skills on their own or from just observing parents and peers (Edgar, 1988; Halpern & Benz, 1987; Sitlington, Frank, & Carson, 1993; & Wagner et al., 1992). In other words, it is not sufficient to assume students with disabilities will acquire daily living skills, vocational skills, or community access skills without direct instruction in these areas, which means they need to have access to a curriculum that specifically addresses these aspects so they can gain the skills necessary to achieve positive post-school outcomes, such as independent living, economic self-sufficiency, and full participation in community (Patton, Smith, Clark, Polloway, Edgar, & Lee, 1996; Turnbull et al., 2006).

With recognition that secondary students with disabilities are not well prepared for adult life, a growing number of educators and researchers have called for a renewed and increased use of a functional curriculum (Bigge, Stump, Spagna, & Silberman, 1999; Bouck, 2004b; Cronin, 1996; Dever & Knapczyk, 1997; Knowlton, 1998; Patton, Polloway, & Smith, 2000). Billingsley and Alberston (1999) suggested that the quality of life of a student with a disability is dependent on acquiring functional skills. Clark (1994) and Patton and colleagues have argued that all students with a disability need a functional curriculum, particularly at the secondary level. Yet, there exists controversy regarding a functional curriculum as some feel that it is only suitable for students with severe disabilities (Clark). Unfortunately, making an informed decision for whom, and if, a functional curriculum is appropriate is problematic as it is an under-researched area in the field of secondary special education, both in terms of evidence as to the inclusion

of its components as well as research on its impact on school and post-school student outcomes.

Support for a functional curriculum for students with mild mental impairment has come from limited sources. Polloway, Patton, Smith, and Roderique (1991) suggested that a student's subsequent environments should determine his/her curricular approach in school. For students who are not likely to attend post-secondary education, Edgar and Polloway (1994) suggested that rigorous academic curricula models are inappropriate. Instead curriculum models focusing on work and preparation for other adult role responsibilities should be utilized, such as life skills, vocational skills, etc. Smith and Puccini (1995) raised similar concerns regarding the use of a rigorous academic curriculum model for students with disabilities stating, "... exposing students to longer periods of time to inappropriate curricula or teaching efforts does not result in improved educational performance or an improved likelihood of success as adults" (p. 279). They also argued that too many students with disabilities at the secondary level were not receiving a curriculum that prepares them for independent living or gives them the necessary skills to be successful after high school, and that "students with disabilities should not be included in general education classes and settings and provided curricula that are not germane to their needs in developing independent living skills" (Smith & Puccini, p. 281).

Historical perspective. Functional curriculum is not a recent phenomenon; its theory actually predates its peak usage time during the late 1970s-early 1980s. Its use in practice and emphasis in research diminished from the 1970s to the 1990s. Nietupski, Hamre-Nietupski, Curtin, and Shrikanth (1997) discovered a decrease of 32% in the number of articles that discussed functional skills during this time span. Billingsley (1997) also noted a decrease in attention to functional skills in articles cited by ERIC between the mid-1980s and mid-1990s (53% reduction). This reduction in emphasis on functional skills (i.e., functional curricula) in practice and research has been linked to the increased emphasis on inclusive education. Billingsley and Albertson (1999) indicated that an emphasis on inclu-

sion increased the "marginalization, or absence" of attention to functional skills and functional curricula (p. 299), and they suggested that functional skills instruction or curriculum deserves a "renewed interest and attention" in both research and in practice (p. 301).

Functional Curricula and Federal Policy

Despite the recent decrease in attention regarding functional curricula, some researchers believe that it is still a viable, and most appropriate, option for educating secondary students with mild mental impairment (Bouck, 2004a). However in this era of federal education legislation (i.e., NCLB, 2002; IDEA, 1997, 2004), one must still question the role and need for a functional curriculum for students with disabilities and investigate alignment between the curriculum model, current policies, and the purpose and goals of special education. This is particularly important with regards to some of the more controversial aspects of NCLB and IDEA: access to the general education curriculum and setting, accountability, highly qualified teachers, and use of scientifically-based research.

Access to general education curriculum and setting. IDEA, (2004) predicated by earlier reauthorizations of the IDEA, states that students with disabilities should be given access to the general education curriculum and educated in the "least restrictive environment." Yet, what exactly constitutes access to the general education curriculum and least restrictive environment raises controversy. If access to the general education curriculum means access to inclusive classes that teach mathematics, science, language arts, and social studies then a functional curriculum does not align. Although a functional curriculum includes mathematics, science, language arts, and social science through its focus on *functional academics*, it is not the same content or purpose. For example, instead of helping students understand a concept of advanced algebra, a functional curriculum focuses on students understanding finances, such as receiving paychecks, paying bills and taxes, and budgeting. With regards to the least restrictive environment, there is debate among those that are conservationists and believe in the

continuum of placements and those that are inclusionists (Dorn & Fuchs, 2004). A functional curriculum has been used primarily in self-contained, or pull-out, special education classroom settings, as opposed to inclusive classes (Nolet & McLaughlin, 2000). Hence, it works to preserve the continuum of services first guaranteed by IDEA.

A functional curriculum has often been viewed as an alternate curriculum, in reference to the general education curriculum (Nolet & McLaughlin, 2000) and hence defined as deviant from the “norm” or accepted curriculum. Despite criticism and perception, Edgar and Polloway (1994) argued that alternate curricula, such as a functional curriculum, does not mean “a watered down version of the same curriculum” (p. 443). Instead, a functional curriculum reflects a different curricular option and hence teaches a different set of topics and skills. Edgar and Polloway suggested that an alternative curriculum may not be “dumbed down” but instead may be better than the general education curriculum, particularly when one considers the needs of the students it is being used to educate (p. 444), which could be argued in the case of using a functional curriculum to educate students with mild mental impairment.

Weaver, Landers, and Adams (1991) also argued that the educational community has often associated a functional curriculum with a “limited curriculum” (i.e., a limited set of skills) (p. 284). Yet, Weaver and colleagues contended that this is not accurate. A functional curriculum actually embodies the principles all individuals need to be a contributing member to society (i.e., daily living, vocational, social, financial skills, etc). Weaver and associates stipulated a functional curricular approach is grounded by teachers continually asking themselves, “How, when, and where will my students use this knowledge in their lives, now and in the future?” (p. 285), to ensure that what students receive in school is useful and assists them in securing successful post-school outcomes. Thus, rather than being limited by alignment with the general education curriculum, and therefore NCLB (2002) and IDEA (2004), a functional curriculum may be more closely aligned to the knowledge, skills, and experiences students with mild mental impairment will need after

school. In reality, a functional curriculum may actually be better aligned with helping assist students in achieving the four national policy goals established for individuals with disabilities: equal opportunity, full participation, independent living, and economic self-sufficiency (IDEA; Turnbull et al., 2006).

Consideration of alignment or lack thereof, between current education legislation and functional curricula also needs to consider the educational setting or placement. While neither IDEA (2004) nor NCLB (2002) officially mention inclusive education, IDEA does reference the “least restrictive environment” which is interpreted as educating students with disabilities with students without disabilities to the maximum extent possible (Turnbull et al., 1996). Thus, challenges to a functional curriculum arise from the issue of placement – namely that a functional curriculum often occurs in a “segregated” setting, as opposed to the general education setting (Field, LeRoy, & Rivera, 1994). Field and colleagues noted that often, to make a curriculum functional for students with disabilities, it needs to be taught in a setting other than general education; one that allows students to gain daily living skills, community exposure as well as vocational training. Yet, with the current interpretation of IDEA’s “least restrictive environment” being the general education setting, a misalignment exists between the interpretation of the policy (IDEA) and the implementation of a functional curriculum.

Accountability and assessment. With an emphasis on the general education curriculum and setting comes a focus on accountability for students with disabilities (Branstad et al., 2002; IDEA, 2004; NCLB, 2002). All students, including those with disabilities, are now required to participate in yearly testing in grades three through eight and once again between grades 10 and 12 in literacy, mathematics, and science (NCLB). In general, students with disabilities are to take the general large scale assessment, although some students take an alternate assessment. While an unlimited number of students may take an alternate assessment, federal policy only allows for up to 1% of total school population to take the alternate assessment and have it count towards a school’s Annual Yearly Progress (AYP) (Branstad et al., NCLB). Thus, the majority of alter-

nate assessments have been typically designed for students with severe disabilities (Kleinert & Thurlow, 2001; Thompson, Quenemoen, Thurlow, & Ysseldyke, 2001; Ysseldyke, Olsen, & Thurlow, 1997), leaving students with mild mental impairment with few options.

The focus on “who” should take alternate assessments, such as students with severe disabilities, creates challenges for the “what” of instruction. With the focus of alternate assessments on students with severe disabilities, students with mild mental impairment are often excluded (Bouck, 2007). If this population is largely excluded from alternate assessments, the type of curriculum used to educate students with mild mental impairment needs to be questioned. For example, it would be unfair to students and a disadvantage to a school for teachers to use a functional curriculum for secondary students with mild mental impairment if they are to be tested on the general education large scale assessment aligned to state standards. Yet, a functional curriculum might present these students with the skills, knowledge, and experiences they need to be successful after school.

Recently, the United States Department of Education has recognized the limited nature of federal policy on alternate assessments. In 2007, the United States Department of Education indicated that “a small group of students with disabilities” would be allowed to use modified achievement standards and take alternate assessments based on the modified achievement standards (p. 17748). Students who fit within this category are believed to be those for whom the general large scale assessment is too challenging and the current alternate assessment aligned to alternate standards too easy, and thus, neither accurately measuring a student’s abilities. While this move may at first seem promising for students with mild mental impairment, it does not hold much assurance for alignment with a functional curriculum. These modified standards and assessments must still be aligned with grade-level content, making it questionable if they would align with the content found within a functional curriculum. This continues to raise questions regarding the appropriateness of a functional curriculum as the curriculum of choice for students with mild mental impairment.

Highly qualified teachers. Both NCLB (2002) and IDEA (2004) stipulate that all teachers, including special education teachers, should be highly qualified. Each law discusses what it means to be highly qualified according to the level at which the teacher teaches: elementary or secondary, and, for special education teachers, if their students are to be following general or adapted state standards.

At the secondary level, the focus on highly qualified teachers is on those that provide instruction in the “core academic areas”: reading/language arts/English, mathematics, science, government, history, geography, civics, economics, and foreign languages (Yell & Drasgow, 2005). NCLB (2002) and IDEA (2004) do not really discuss the components of a functional curriculum with regards to highly qualified special education teachers, as many of the topics are not encompassed within the core content areas. This suggests three interrelated curriculum content and teacher quality issues: (1) A functional curriculum is not valued as it is not important that teachers be “highly qualified” in the components and overall understanding of this type of curriculum (i.e., have coursework or in-service experiences); (2) no special knowledge, understanding or skills are needed to implement a functional curriculum approach or functional curriculum components for students with disabilities; and (3) students with disabilities who receive a functional curriculum are not a high priority, as the educational background of who teaches this curriculum for this population is not important, particularly since it is not a valued curriculum.

Scientifically-based research practices. A final issue to explore regarding NCLB (2002), IDEA (2004), and a functional curriculum is scientifically-based research. Scientifically-based research (SBR) is mentioned over 100 times in NCLB (Latisch, 2003; NCLB, 2002; Trybus, 2004). The implication is that only those instructional strategies and methods, curricula, and professional development programs that have evidence of their effectiveness with regard to student achievement should be used in schools (NCLB). The SBR requirement moves schools away from using personal experiences or anecdotal evidence as the means for educational decision-making, to an expectation they will seek out and interpret

research that involves empirical methods analyzed in a rigorous fashion (i.e., typically assumed to be experimental or quasi-experimental) to make curriculum, instruction, assessment, and professional development decisions (Gersten et al., 2005; NCLB).

A functional curriculum approach to teaching secondary students with mild mental impairment currently does not conform to NCLB's (2002) scientifically-based research requirements. There is limited current research regarding a functional curriculum approach for this population, as indicated by a decrease in research on this approach (Billingsley & Albertson, 1999; Nietupski et al., 1997). Hence, it is difficult to have the empirical evidence to support this curricular approach in practice if one follows federal policy guidelines.

However, there is some research to support a functional curriculum for students with disabilities. Benz, Lindstrom, and Yovanoff (2000) studied the Youth Transition Program (YTP), which provided services for special education students in their last two years of high school and involved transition planning based on post-school goals and self-determination; instruction in functional academics, vocational, independent living, and personal-social content areas; paid work experience; and a two-year follow-up service component on an as needed basis (Benz, Lindstrom, & Latta, 1999). Students in the YTP had graduation rates of 72%, and within that figure, the rates doubled for those who had two years in the program as opposed to one or less years (Benz et al., 2000). After graduation, 68% were engaged in productive work or some sort of post-secondary education.

The Youth Transition Program was recognized as an exemplary school-to-work transition model by the U.S. Department of Education (Benz et al., 1999). Follow-up studies found that students with disabilities who participated in YTP had better post-school outcomes than students who did not participate in YTP. The participating students were found to have higher average hourly wages; higher average weekly wages; higher maintenance of employment; less likely to have lost their job because they quit, were laid off, or fired; and more likely to be determined eligible for rehabilitation services (Benz et al.).

On a smaller scale, Miller (1994) also found positive results after implementing a functional approach for adolescents with high incidence disabilities. Miller examined the *On Your Own* curriculum, a functional curriculum for adolescents with "mild disabilities" geared towards developing skills in selecting a career, finding living arrangements, and budgeting. He found that after implementation of the curriculum, the percentage of students skipping class was reduced by 80% and referrals to the principal for reasons of non-compliance behavior was reduced by 72%.

Discussion

A functional curriculum represents a different, yet a viable and potentially successful, approach to educating secondary students with a disability, such as students with mild mental impairment. Research and literature suggest that a functional curriculum may assist these students in achieving better post-school outcomes, something which research has repeatedly illustrated is needed (Cameto & Levine, 2005; Wagner, 2003). Although there are advocates for a functional curriculum approach to educating this population (Bouck, 2004b; Cronin, 1996; Dever & Knapczak, 1997; Patton et al., 2000), it seems to be a curriculum and educational philosophy not supported by current federal education policies, such as IDEA (2004) or NCLB (2002). There appears to be a mismatch between federal legislation and a functional curriculum regarding curricular components and setting, accountability and assessment, highly qualified teachers, and scientifically-based practices.

General Education Curriculum and Setting

The *Individuals with Disabilities Education Act* (1997; 2004) has long emphasized that students with disabilities should be provided access to the general education curriculum and educated, whenever possible, in the least restrictive environment, which many have taken to mean the general education setting (Turnbull et al., 2006). A functional curriculum approach to educating students with disabilities appears to be at odds with the policy's intent with regards to the general education curric-

ulum and setting. Functional curricula were largely developed because of what educators felt was missing in the education of students with disabilities – daily living, functional academics, independent living, community, etc., or in other words, what the general education curriculum was lacking in the preparation of these students (Retish et al., 1991; Schmalle & Retish, 1989). Yet, these skills, and others included in functional curricula, continue to be as important today in the preparation for post-school life for students with disabilities as they were prior to NCLB (2002) and the reauthorization of IDEA. What is taught to students with disabilities should not be based solely on a state's general set of curriculum standards, or the setting in which they are educated, but rather on how it can benefit students and help them to achieve their post-school goals.

Accountability and Assessment

A large focus of both IDEA (2004) and NCLB (2002) is accountability. A functional curriculum approach to educating secondary students with mild mental impairment does not align well with the emphasis of these policies, specifically in terms of students with disabilities taking the general large scale assessment, even with accommodations. For example, the focus on accountability, as measured by a state's general large scale assessment and then a school's Annual Yearly Progress (AYP), predicates a general education curriculum aligned to state standards. Yet, it would be unfair to test students with mild mental impairment using this general assessment if they were not educated using a curriculum aligned to their state's standards and hence assessment. A functional curriculum would then disadvantage a school district, and the students, as it would be difficult for a student to pass a test if they have not received instruction based on its content. It would also be unfair to give students a curriculum, such as the general education aligned to the state standards, when it is clear that the students are not at their developmental level and it does not position them for successful post-school outcomes. Hence, the question becomes does the field (a) teach a functional curriculum and develop a new accountability system that recognizes differences in needs, or (b) teach a general educa-

tion curriculum to all and keep the same accountability system? Although the government has recently acknowledged that neither the general large scale assessment or the current alternate assessment is appropriate for all students with disabilities, it is unclear if a functional curriculum for students with mild mental impairment would be considered appropriate under the revised model as it calls for a modified alternate assessment aligned to modified state standards and includes only another 1% of the total school population, likely only 20% of the students with disabilities.

Furthermore, with the focus on accountability and the general education curriculum, one has to question why these policies have lost sight of the original underpinnings of public education: to develop productive and responsible citizens for a democratic society (Brick, 2005; Cornbleth, 1985; Cuban, 2003; Curtis, 1991; Heyneman, 2003; Patton, Pollo-way, & Cronin, 1987). Do these policies and their principles move the field from a premise of equal and equitable education for all to the "same" education for all when same does not mean equitable (NCTM, 2000). In the last 100 years, schools and society have come a long way towards achieving the goal of educating all children, including children with disabilities. The field now must try not to oversimplify the complexity of what it means to educate all by reducing it to "the same" and allowing this presumption to determine both curriculum and assessment that every student receives. This is not to say that any student should be denied the opportunity or support needed to study important and challenging content, but it does question the idea of what is important and challenging to whom. There is a reason special education programs and curricula, such as a functional curriculum, came into existence, and NCLB (2002) and IDEA (2004) should not undermine or oversimplify the needs of the students in these programs.

Highly Qualified Teachers

While no one would deny that every student deserves a highly qualified teacher, NCLB (2002) and IDEA (2004) focus on highly qualified teachers for particular areas, defined as the core content areas. Federal policy suggests that requirements for a highly qualified

teacher depend on who or what one teaches. For example, IDEA differentiates between teachers who teach to the state standards and those who teach to alternate achievement standards. Secondary special educators who teach to alternate achievement standards are stipulated as meeting NCLB's requirements if they are licensed and qualified to be an elementary teacher, whereas those that teach the traditional state standards are required to meet the requirements for a secondary teacher for each core area for which they are the primary instructor (IDEA; Turnbull et al., 2006).

In this distinction, it is somewhat unclear where teachers of students with mild mental impairment who use a functional curriculum fall. The teachers are generally not teaching to alternate standards, as many states have reserved alternate assessments, and subsequently the alternate standards they are aligned to, for students with severe disabilities (Kleinert & Thurlow, 2001; Thompson et al., 2001; Ysseldyke et al., 1997). Yet, a functional curriculum's functional academic content component may be closer to the elementary level of skills than the secondary. Hence, there is confusion if special education teachers implementing a functional curriculum need to be highly qualified in the core areas they teach to this population (i.e., functional literacy, mathematics, etc.). And one has to ask why these teachers do not need to be highly qualified in the other components. Isn't it important that a highly qualified teacher prepare students in vocational education, social skills, daily living skills, etc.? If the premise of highly qualified teachers is that teacher quality affects student outcomes (Hanushek, 1992; Sanders & Rivers, 1996; Whitehurst, 2003), shouldn't all students have highly qualified teachers regardless of the content or curriculum?

Scientifically-Based Research

While a functional curriculum has support from teachers and researchers in the field of special education, it may not have the literature base needed to be an evidence-based practice, as stipulated by NCLB (2002). This lack of scientifically-based research on a functional curriculum may be perpetuated by a

catch-22 situation. A functional curriculum for students with mild mental impairment does not appear to be widely supported by federal policies that stipulate general education curriculum and accountability. The lack of governmental support for functional curricula may decrease the financial support for research in this area. And the lack of support for research on the effects of using a functional curriculum may result in less use in the curriculum due to lack of research providing evidence of effective practice. In contrast, the lack of attention to this issue in the field, such as through research, may actually be decreasing its governmental support as its benefits are not being disseminated. Perhaps if research increases and greater attention is given to functional curricula for students with mild mental impairment, government support and recognition would be provided in terms of its implementation in practice and place in research.

Conclusion

Although a functional curriculum approach to educating secondary students with disabilities appears in conflict with current education legislation, *No Child Left Behind* (NCLB, 2002) and the *Individuals with Disabilities Education Act* (IDEA, 2004), it is important to note that a functional curriculum may still be the approach needed to successfully meet the needs of this population of students. In particular, a functional curriculum might be well-suited for helping students with mild mental impairment achieve the goals defined in America's policy related to individuals with disabilities, namely equal opportunity, full participation, independent living, and economic self-sufficiency (IDEA; Turnbull et al., 2006) as well the original conception of public education – productive citizens in a democratic society. Thus, the question becomes, does current policy meet the needs of all students, especially those with disabilities, or are we now leaving those students behind, again?

Students with mild mental impairment deserve an equal opportunity to learn the skills and knowledge they need to be successful in the world they face after high school. A functional curriculum has been shown to provide these students the opportunities to learn in-

dependent living skills, daily living skills, social skills, and vocational skills to find success post-school. Previous research has suggested that students with disabilities usually do not acquire these skills independently and thus a functional curriculum is needed to enable students to achieve positive post-school outcomes, such as equal opportunity, full participation, independent living and economic self-sufficiency (Edgar, 1988; Halpern & Benz, 1987; Sitlington et al., 1993; Wagner et al., 1992).

Individuals with disabilities deserve full participation and an equal opportunity, but full participation and equal opportunity do not necessarily equate to inclusive school settings and general education curriculum. Providing the "same" is not providing equal opportunity, and full participation should be focused on providing classes and environments that work on developing the knowledge and skills necessary for post-school opportunities rather than just traditional high school courses. The focus of secondary education should be to prepare students for the life after school, and for students with mild mental impairment this includes full participation in the community and an equal opportunity to succeed in work, independent living, and social activities. By utilizing a functional curriculum in school, students with mild mental impairment would have increased access to community settings, vocational opportunities, development of social skills and self-determination. By gaining these experiences, skills, and knowledge prior to leaving school and entering the work force, and/or independent living situations, students with mild mental impairment can increase the potential for successful outcomes.

Finally, national policy suggests that goals for individuals with disabilities be independent living and economic self-sufficiency. It seems intuitive that learning and practicing these skills in high school, such as through a functional curriculum that emphasizes components of independent living, vocational education, and financial skills, would increase students' chances to be successful in these areas after school. All students deserve an appropriate curriculum, even if it does not completely align with current federal education policy.

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